secrecy of the vote. Media persons are given special passes to enter polling stations to cover the poll process and the counting halls during the actual counting of votes.

Media are also free to conduct opinion polls. The Election Commission has stipulated that the results of opinion polls cannot be published between two days before the start of polling and after the close of poll in any of the constituencies. Similarly, the results of exit polls can only be published after half an hour of the end of polling hours on the last day of poll.

Counting of Votes After the polling has finished, the votes cast in the EVM are counted under the supervision of Returning Officers and Observers appointed by the Election Commission. After the counting of votes is over, the Returning Officer declares the name of the candidate, to whom the largest number of votes have been given, as the winner and as having been returned by the constituency to the concerned House.

Elections to the Lok Sabha are carried out using a first-past-the-post electoral system. The country is split up into separate geographical areas, known as constituencies, and the electors can cast one vote each for a candidate, the winner being the candidate who gets the maximum votes.

Elections to the State Assemblies are carried out in the same manner as for the Lok Sabha election, with the states and union territories divided into single-member constituencies, and the first-past-the-post electoral system used.

The Election Commission compiles the complete list of members elected and issues an appropriate Notification for the due constitution of the House. With this, the process of elections is complete and the President, in case of the Lok Sabha, and the Governors of the concerned states, in case of State Assemblies, can then convene their respective Houses to hold their sessions.

Election Petitions Any elector or candidate can file an election petition if he or she thinks there has been malpractice during the election. An election petition is not an ordinary civil suit, but treated as a contest in which the whole constituency is involved. Election petitions are tried by the High Court of the state involved, and if upheld can even lead to the restaging of the election in that constituency.

Till now, seventeen general elections have been held to the Lok Sabha. The results of these elections are summarised in Table 81.1.

Table 81.1 Results of Lok Sabha Elections

General Elections (Year)	Elective Seats	Seats won by Parties*
First (1952)	489	Congress 364, Communist 16, Socialist 12, KMPP 9, Jana Sangh 3.
Second (1957)	494	Congress 371, Communist 27, Praja Socialist 19, Jana Sangh 4.
Third (1962)	494	Congress 361, Communist 29, Swatantra 18, Jana Sangh 14, Praja Socialist 12, Socialists 6.